

**IN THE COUNTY COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA**

Sweet Living, Inc.,
Plaintiff,

Case No.: 26-CC-001256
Division: 6-B

v.

Brandi Rodgers,
Defendant.

DEFENDANT'S ANSWER AND AFFIRMATIVE DEFENSES

Defendant, BRANDI RODGERS, answers Plaintiff's Complaint as follows:

ANSWER

1. Defendant denies that a landlord-tenant relationship exists between the parties.
2. Defendant denies that she is the legal owner of the subject mobile home.
3. Defendant denies that any lot rent is lawfully owed.
4. Defendant is without knowledge as to remaining allegations and demands strict proof thereof. Any allegation not specifically admitted is denied.

AFFIRMATIVE DEFENSES

FIRST AFFIRMATIVE DEFENSE (No Legal Ownership - § 319.22): Title to the mobile home was never transferred to Defendant. The seller, Sally Potes, retained the certificate of title and remains the owner of record. Under § 319.22(2), no court may recognize Defendant as the owner. Plaintiff cannot evict her as an owner or impose owner lot-rent liability.

SECOND AFFIRMATIVE DEFENSE (No Approved Tenancy / Rescission - § 723.059): Plaintiff's manager expressly denied Defendant tenancy approval and barred her from the premises. Defendant never took possession and timely rescinded the purchase by certified-mail demand under § 723.059(1). No tenancy was ever created; Plaintiff lacks standing.

THIRD AFFIRMATIVE DEFENSE (Lack of Standing / Privity): No contract, lease, or privity exists between Plaintiff and Defendant giving rise to any obligation to pay lot rent.

FOURTH AFFIRMATIVE DEFENSE (Registry Deposit Inapplicable): Because Defendant disputes the existence of a tenancy, no registry deposit is required absent a prior evidentiary hearing on occupancy status. *Frey v. Livecchi*, 852 So. 2d 896; *Grimm v. Huckabee*, 891 So. 2d 608.

FIFTH AFFIRMATIVE DEFENSE (Defective Service / No Jurisdiction): Service was not perfected in strict compliance with § 48.031; the Court lacks personal jurisdiction.

Defendant reserves the right to amend these defenses.

Brandi Rodgers 6.3.2026

BRANDI RODGERS, Defendant, Pro Se

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Dated: June 3, 2026

CERTIFICATE OF SERVICE

I certify that on June 3, 2026, a true and correct copy of the foregoing was served via U.S. Mail and email upon Plaintiff's counsel:

Keith William Wynne, Esq.

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